



Code: GBLA
Adopted: 7/21/21

Disclosure of Information

Authorized HCCS officials may disclose information about a former HCCS employee's job performance to a prospective employer. HCCS officials are immune from civil liability for such disclosures under the following conditions:

1. The disclosure of information regarding the former employee's job performance is upon request of the prospective employer or the former employee. This disclosure is presumed to be in good faith. Presumption of good faith is rebutted by showing the information disclosed was:
 - a. Knowingly false;
 - b. Deliberately misleading;
 - c. Rendered with malicious purpose; or
 - d. Violated civil right of the former employee protected under Oregon Revised Statute (ORS) 659 or ORS 659A.
2. Records created pursuant to ORS 339.388(8)(c) are confidential and are not public records as defined in ORS 192.311. HCCS may use the record as a basis for providing the information required to be disclosed about an employee under ORS 339.378(1);
3. The disclosure is the result of a request from law enforcement, the Oregon Department of Human Services, Teacher Standards and Practices Commission or the Oregon Department of Education in conducting an investigation related to suspected abuse or suspected sexual conduct to the extent allowable by state and federal law, including laws protecting a person from self-incrimination;
4. Not later than 20 days after receiving a request under ORS 339.374(1)(b), HCCS, if it has or has had an employment relationship with the applicant, shall disclose the information requested.

END OF POLICY

Legal Reference(s):

[ORS 30.178](#)
[ORS 338.115\(2\)](#)

[ORS 339.370 - 339.374](#)
[ORS 339.378](#)

[ORS 339.388](#)
[ORS Chapter 659](#)
[ORS Chapter 659A](#)